

1.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RECONSIDERATION OF APRIL 13, 2026 ORDER DENYING DEFENDANT'S MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

3.

CASE #	CASE NAME	HEARING NAME
CVME2511791	DEGLER VS DEGLER	MOTION FOR ENTRY OF DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION BY SALE

Tentative Ruling: GRANTED

4.

CASE #	CASE NAME	HEARING NAME
CVME2517523	GAMEZ VS CWD WEST CORP.	MOTION TO STRIKE

Tentative Ruling: Off Calendar 07/22/26

5.

CASE #	CASE NAME	HEARING NAME
CVME2600208	CARRERA VS IBARRA	MOTION TO STRIKE

Tentative Ruling: Deny

On January 13, 2024, Plaintiff Evilio Carrera, Jr., an officer with the Menifee Police Department, was on duty in his patrol vehicle and driving at the intersection of Haun Road and New Hub Drive in Menifee. Defendant Bella M. Sule, erroneously sued and served as Ivet Ibarra, ("Defendant") failed to come to a complete stop at the intersection and struck the rear passenger wheel well causing him personal injuries. Plaintiff alleges officers on the scene detected a strong odor of marijuana emanating from Defendant's person and vehicle and she was arrested for suspicion of driving under the influence of drugs.

On January 1, 2026, Plaintiff Evilio Carrera, Jr. and his wife Minerva X. Carrera ("Plaintiffs"), filed the instant action alleging the following four causes of action against Defendant: 1) Negligence; 2) Negligence Per Se; 3) Exemplary Damages; and 4) Loss of Consortium.

Defendant now moves to strike the 3rd cause of action for Exemplary Damages and the prayer for punitive damages. (C.C.P., § 436.) Defendant argue Plaintiff has failed